TENTATIVE RULINGS

DEPT. CX103
(657-622-5303)

Judge David A. Hoffer
July 13, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

If a party intends to submit on the Court's tentative ruling, please call the Court Clerk to inform the court. If both parties submit, the tentative ruling will then become the order of the Court.

APPEARANCES: Department CX103 conducts non-evidentiary proceedings, such as law and motion, remotely by Zoom videoconference. All counsel and self-represented parties appearing for such hearings should check-in online through the Court's civil video appearance website at https://www.occourts.org/media-relations/civil.html prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and an instructional video are available on the court's website. All remote video participants shall comply with the Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also posted online at https://www.occourts.org/media-relations/aci.html. A party choosing to appear in person can do so by appearing in the courtroom on the date/time of the hearing.

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- Civil Court Reporter Pooling; and
- Court Reporter Interpreter Services

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#	Case Name	
1	30-2021-01180704 Warner vs. The Dot	The tentative ruling is to continue Plaintiff Marisela Dayan Warner's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement to November 9, 2026 at 1;30 p.m. Counsel must file supplemental papers addressing the court's concerns (not fully revised papers that would have to be

		reread) no later than two weeks before the next hearing date. Counsel must submit an amendment to the settlement agreement rather than any amended settlement agreement. Counsel also must provide a red-lined version of any revised papers. Counsel also should provide the court with an explanation of how the pending issues were resolved with references to any corrections to the settlement agreement and the class notice, rather than with a supplemental declaration or brief that simply asserts the issues have been resolved. The settlement includes the settlement of PAGA claims but there is currently no PAGA claim in this action. The settlement states “Plaintiff intends to file a First Amended Complaint in the Class Action adding in the single cause of action from the PAGA Action. (Settlement ¶ 2.3.) However, no amended complaint has been filed. The parties have not provided the estimated number of aggrieved employees included in this settlement. The court disallows the attorney costs amount claimed for postage, copies, scans, and faxes because the court considers that cost item to be properly part of attorney overhead, so those cost items should be excluded from the attorney costs’ request for the final approval motion. The motion fails to provide the class members’ and aggrieved employees’ estimated individual recovery under the proposed settlement, including the estimated high, low and average payments to be paid to class members and aggrieved employees. The average payment must be provided for preliminary approval, but if the high and low estimated payments are not available at this time, they must be provided in the motion for final approval. The settlement agreement and class notice are inconsistent as to who will resolve workweek dispute. The settlement agreement states: “While the Administrator and the parties will attempt to resolve any such dispute, the Court ultimately will decide any unresolved dispute.” (Settlement ¶ 7.8.4.) In Section 4(c) on page 7 of the class notice regarding workweek challenges, the notice erroneously states: “The Administrator’s decision is final. You can’t appeal or otherwise challenge its final decision.” The documents should reflect instead that, while the Administrator and the parties will attempt to resolve

		any such dispute, the court ultimately will decide any unresolved dispute. The request for exclusion form must be referenced in the class notice in every section that discusses opting out/requesting exclusion so that class members are aware that it should be used to request exclusion. In addition, the request for exclusion form should make it clear that aggrieved employees cannot opt out of the PAGA portion of the settlement. Class members and aggrieved employees may object to the allocation of the settlement to PAGA penalties. Thus, on the first row, left column of the table on page 3 of the class notice, the phrase "Participating Class Members Can Object to the Class Settlement but not the PAGA Settlement" should be amended to state "Participating Class Members Can Object to the Class Settlement." In Section 1 on page 3 of the class notice, the phrase "rest breaks" in the description of this action should be removed as that is not a claim in the Complaint or PAGA notice. Counsel should propose a realistic Final Approval Hearing date, bearing in mind that all papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice, and plaintiff's declaration to support the enhancement request must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. Plaintiff is ordered to give notice of this ruling to the LWDA and Defendants.
2	30-2024-01405179 Miranda vs. Cleanroom Tecs, Inc.	Plaintiff Pastor E. Miranda's ("Plaintiff") Motion for Preliminary Approval of Class Action and PAGA Settlement is **GRANTED**. A Final Approval Hearing is set for December 14, 2026 at 1:30 p.m. All papers in support of the Final Approval Hearing, including detailed hourly breakdowns of plaintiff's attorneys to support a lodestar cross-check, detailed plaintiff attorney cost breakdowns, an Administrator declaration and invoice,

		and plaintiffs' declarations to support the enhancement request, must be filed at least 16 calendar days before the Final Approval Hearing date to provide enough time for court review, and must be served in compliance with CCP notice of motion requirements. IT IS ORDERED THAT Plaintiff must provide a [Proposed] Order in accordance with this ruling and with reference to the amendments to the settlement agreement within five (5) days of this ruling.
3	30-2025-01454520 Spencer as Successor-in-Interest vs. The Bank of New York Mellon Trustee	Defendants NewRez LLC dba Shellpoint Mortgage Servicing ("Shellpoint") and The Bank of New York Mellon, as Trustee for the Certificateholders of the CWABS Inc., AssetBacked Certificates, Series 2006-24's ("BNYM") (collectively, "Defendants") Motion for Relief from Waiver of Objections is **DENIED AS MOOT**, as Defendants did not waive their objections to written discovery that was never effectively served on Defendants. Defendants' Alternative Motion for an Order Confirming No Waiver Occurred is **GRANTED**. As a threshold matter, Plaintiffs filed two untimely oppositions to this Motion. For the conservation of judicial resources, the court considered the merits of these oppositions. However, Plaintiffs and Plaintiffs' counsel are admonished to comply with all procedural rules moving forward in this action with respect to both service and timely filing of their papers. Plaintiffs are warned that the court may exercise its discretion not to consider such procedurally defective filings in the future. Plaintiffs allege that they served written discovery on Defendants on February 4, 2026 when they served Ian A. Rambarran, the Chief Executive Officer of Klinedinst PC. (ROA 250 at p. 1.) However, Defendants' attorneys of record in this action are Marquis C. Stepteau and Neeru Jindal of Klinedinst PC. (Stepteau Dec. ¶ 4.) They "have made general appearances since the time of service of the Complaint and have been in regular communication with Plaintiffs' counsel, Peter Winkler, by email and telephone." (*Id.*) They "have also appeared jointly and separately at hearings and in connection with other matters related to this action." (*Id.*) "No other attorney representing Defendants have been in active communication with Mr. Winkler." (*Id.* ¶ 5.)

		Ian A. Rambarran is not counsel of record for Defendants in this action. (Stepteau Dec. ¶¶ 14, 16.) "He has not communicated with Mr. Winkler during this litigation and was not copied on the parties' numerous email exchanges." (*Id*. ¶ 16.) "He also was not one of the attorneys whom Ms. Jindal specifically and expressly requested that Plaintiffs serve with all pleadings and papers." (*Id*.) Due to the ineffective service, it was not until March 27, 2026, that Defendants' counsel learned of the written discovery, as it was disclosed in a meet-and-confer statement for the April 6, 2026 proceedings filed by Plaintiff's counsel. (Stepteau Dec. ¶ 11.) "That was the first time Ms. Jindal and [Mr. Stepteau] became aware of the written discovery, which had never been served on either of [them]." (*Id*.) Defendants also state that "Plaintiffs' counsel [] affixed Ms. Jindal's signature to the meet-and-confer statement filed with the Court without her authorization or express approval," and that "[t]he filing misleadingly suggested that Counsel agreed Defendants had been served with the discovery and that the parties had met and conferred regarding discovery responses that, in fact, had never been served on Defendants' counsel." (*Id*. ¶ 12.) In this action, Defendants' counsel has informed Plaintiffs' counsel several times that they had not been properly served on multiple filings. (Stepteau Dec. ¶¶ 6-10.) After not receiving the subject discovery, Defendants' counsel attempted to meet and confer with Plaintiffs' counsel twice, to no avail. (*Id*. ¶¶ 17-20.) Despite a promise to re-serve the discovery, Plaintiffs' counsel never served the discovery on Defendants' counsel of record. (*Id*.) Defendants' counsel only obtained copies of the subject discovery by contacting counsel for another defendant in this action. (*Id*. ¶ 15.) On April 30, Defendants served discovery responses to Plaintiffs' Form Interrogatories, Special Interrogatories, Requests for Production of Documents, and Requests for Admission. (*Id*. ¶ 21.) "A defendant appears in an action when . . . an attorney gives notice of appearance for the defendant." (CCP § 1014.) "After appearance, a defendant or the defendant's attorney is entitled to notice of all subsequent proceedings of which notice is required to be given." (*Id*.) "[I]n all cases where a party has an attorney in the action or proceeding, the service of papers, when required, must be upon the attorney instead of the party[.]" (CCP § 1015.) "The attorney of record is the person

		the client has named as his agent upon whom service of papers may be made." (*Reynolds v. Reynolds* (1943) 21 Cal. 2d 580, 584.) Another attorney at a firm representing a party is not an agent of the party to be served if the party did not designate that attorney as its agent for service of process, and there is no evidence of any ostensible agency. (*Wagner v. City of S. Pasadena* (2000) 78 Cal. App. 4th 943, 951.) "[I]n all actions or proceedings where a party has an attorney of record, the service of papers, when required, must be made upon the attorney, but the fact that the attorney may have represented the party in other matters does not authorize service in a matter in which he does not appear as an attorney." (*Spencer v. Barnes* (1935) 6 Cal. App. 2d 35, 37.) Plaintiffs provide no authority demonstrating that service upon Mr. Rambarran, who is not Defendants' attorney of record in this action, was effective service upon Defendants. The court finds that, under these circumstances, no relief from waiver of objections is required as the subject discovery was never properly served on Defendants. Defendants' Request for Monetary Sanctions of $2,100 is **GRANTED IN PART**. Here, there is no evidence to support the amount requested. Defendants cite to "(Stepteau Decl., ¶ 21)" to argue that $2,100 was the amount incurred to bring these Motions, but paragraph 21 of the Stepteau Declaration is just a reference to the verified discovery responses, and an alleged "true and correct copy of the Verified Responses are attached hereto as 'Exhibit H' and incorporated herein by reference." The court also notes that the verified responses were not provided, and Exhibit H is just the cover e-mail for the responses. Nevertheless, the court finds that Plaintiffs' counsel's failure to meet and confer for this Motion and misleading March 27, 2026 meet and confer statement filed with the court warrants some monetary sanctions. (CCP §§ 2023.010(i), 2023.020, 2023.030.) **IT IS ORDERED THAT** $1,000.00 in sanctions is payable within sixty (60) days of this ruling by Plaintiffs' counsel to Defendants. Defendants are ordered to give notice of this ruling.

4	30-2025-01495811 Frye vs. Rancho Silverado Stables, LLC	Defendants Rancho Silverado Stables, LLC, Heather Perkins, Fawn Rinalduzzi, Eardog Productions LLC, Kimberly M. Wang; Argaux LLC, and Argaux & Amliere LLC's (collectively, "Defendants") Motion for Protective Order to Stay Plaintiff Steve Frye's ("Plaintiff") Discovery and Quash Certain Discovery Requests is **GRANTED IN PART**. **IT IS ORDERED THAT** Defendants need not answer Request for Admission ("RFA") Nos. 1-9, Special Interrogatory ("SRog") Nos. 2, 6, 11, 15, 18, 19, 21, 22, 23, 24, 25, 27, 31, 35, 39, 43, 47, 50, 51, 52, 54, 57, 58, 60, 61, 62, 64, 66, and 67, and Request for Production of Documents ("RFP") Nos. 6, 13, 15, 16, and 17. **IT IS FURTHER ORDERED THAT** Defendants must respond to the remaining discovery and produce any responsive documents within sixty (60) days of this ruling. The court **DENIES** both parties' requests for sanctions, as each are substantially justified in bringing and opposing this Motion and the court's ultimate ruling is a split-decision, granting some of the relief requested and denying other relief requested. In this action, Plaintiff has propounded identical sets of discovery on six of the Defendants consisting of: 67 Special Interrogatories; 27 Requests for Admission; 19 Requests for Production of Documents, and 20 Form Interrogatories. Defendants object to the volume and scope of these discovery requests. First, Defendants ask that the court stay to stay all discovery until resolution of Defendants' pending demurrer, filing of Defendants' answer and entry of a case management order setting forth a discovery schedule. "Employing a discovery method in a manner or to an extent that causes unwarranted annoyance, embarrassment, or oppression, or undue burden and expense" constitutes a misuse of the discovery process, and is subject to sanctions. (CCP § 2023.010(c).) "[F]or good cause shown, the court may establish the sequence and timing of discovery for the convenience of parties and witnesses and in the interests of justice." (Cal. Civ. Proc. Code § 2019.020(b).) "The court shall restrict the frequency or extent of use of a discovery method . . . if it determines either of the following: (1) The discovery sought is unreasonably cumulative or duplicative, or is obtainable from some other source that is more convenient, less burdensome, or less expensive[; and/or] (2) The selected

		method of discovery is unduly burdensome or expensive, taking into account the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation." (CCP § 2019.030(a)(1)-(2).) The court finds that Defendants have failed to demonstrate the need for a stay of discovery to the extent the discovery is within the scope of Plaintiff's claims and is not otherwise improper, as discussed in further detail below. The court finds that a protective order is more appropriate to address Defendants' objections to Plaintiff's discovery requests. Second, Defendants ask for a protective order as to Plaintiff's Requests for Admission ("RFA") Set One Nos. 1-9 & 16-24 and Special Interrogatories ("SRog") Set One (in its entirety) pursuant to California Code of Civil Procedure Sections 2030.090 and 2033.080. "The court, for good cause shown, may make any order that justice requires to protect any party or other natural person or organization from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense." (CCP § 2030.090(b).) "This protective order may include, but is not limited to, one or more of the following directions: (1) That the set of interrogatories, or particular interrogatories in the set, need not be answered[;] (2) That, contrary to the representations made in a declaration submitted under Section 2030.050, the number of specially prepared interrogatories is unwarranted[;] (3) That the time specified in Section 2030.260 to respond to the set of interrogatories, or to particular interrogatories in the set, be extended. . . ." (*Id.*) Similar relief is available for RFPs and RFAs. (CCP §§ 2031.060(b), 2033.080(b).) **<u>Requests for Admission</u>** "[R]equests for admission serve to narrow discovery, eliminate undisputed issues, and shift the cost of proving certain matters." (*Orange Cnty. Water Dist. v. The Arnold Eng'g Co.* (2018) 31 Cal. App. 5th 96, 115.) "Requests for admissions mainly aim to settle a triable issue so it will not have to be tried." (*LCPFV, LLC v. Somatdary Inc.* (2024) 106 Cal. App. 5th 743, 755.) Their purpose is not to uncover factual information; their "main purpose is to set issues at rest by compelling admission of things that cannot reasonably be controverted." (*Id.*)

		The court finds that the following RFAs are premature as Defendants have not yet filed an Answer to Plaintiff's operative complaint: • RFA 1: "Admit you have no facts to support your general denial of the allegations in the complaint in this legal action," • RFA 2: "Admit you have no witnesses with knowledge of facts to support your general denial of the allegations in the complaint in this legal action." • RFA 3: "Admit you have no documents to support your general denial of the allegations in the complaint in this legal action." • RFA 4: "Admit you have no facts to support your specific denial of the allegations in the complaint in this legal action." • RFA 5: "Admit you have no witnesses with knowledge of facts to support your specific denial of the allegations in the complaint in this legal action." • RFA 6: "Admit you have no documents to support your affirmative defenses in this legal action." • RFA 7: "Admit you have no facts to support your affirmative defenses in this legal action." • RFA 8: "Admit you have no witnesses with knowledge of facts to support your affirmative defenses in this legal action." • RFA 9: "Admit you have no documents that support your affirmative defenses in this legal action." At this stage of proceedings, these RFAs do not narrow discovery, eliminate undisputed issues, or settle a triable issue, and are therefore improper and need not be answered Defendants also object to RFA Nos. 16-24. Defendants argue that the subject RFAs, in combination with Form Interrogatory No. 17.1 improperly requires Defendants to prepare Plaintiff's case for him. However, the court finds that these RFAs are within the scope of discovery, are relevant to Plaintiff's claims, and do serve to narrow the issues in this action: • RFA 16: "Admit you deterred non-females from purchasing and/or receiving admission to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFA 17: "Admit you excluded non-females from purchasing and/or receiving admission to the Ladies Night events that occurred at the Orange County Polo

		Club at any time from July 7, 2022, through the present date." • RFA 18: "Admit you denied full and equal access for non-females to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFA 19: "Admit you deterred Steve Frye from attending the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFA 20: "Admit you excluded Steve Frye from attending the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFA 21: "Admit you denied Steve Frye full and equal access to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFA 22: "Admit you violated California Civil Code section 51 by deterring Steve Frye from attending the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFA 23: "Admit you violated California Civil Code section 51 by excluding Steve Frye from attending Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFA 24: "Admit you violated California Civil Code section 51 by denying Steve Frye full and equal access to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." Thus, the Motion for Protective Order is denied as to these RFAs. **Special Interrogatories** "[N[o party shall, as a matter of right, propound to any other party more than 35 specially prepared interrogatories." (CCP § 2030.030(b).) "[A] party need only respond to the first 35 specially prepared interrogatories served, if that party states an objection to the balance, under Section 2030.240, on the ground that the limit has been exceeded." (CCP § 2030.030(c).) "Subject to the right of the responding party to

		seek a protective order . . . any party who attaches a supporting declaration [of necessity] may propound a greater number of specially prepared interrogatories to another party if this greater number is warranted[.]" (CCP § 2030.040(a).) Any party that seeks to propound more than 35 SRogs, "shall attach to each set of those interrogatories a declaration" setting forth grounds for the additional discovery, including stating why it is warranted and representing that "[n]one of the questions in this set of interrogatories is being propounded for any improper purpose, such as to harass the party, or the attorney for the party, to whom it is directed, or to cause unnecessary delay or needless increase in the cost of litigation." (CCP § 2030.050.) Defendants object to Plaintiff's 67 SRogs to each Defendant in part because they exceed 35. Defendants argue that Plaintiff's counsel's statement of necessity is baseless, but the court finds that the needs of this case, including the complexity of the issues and the expedience of using special interrogatories instead of alternative methods of discovery, justify a higher number of SRogs. There is also no evidence that "this set of interrogatories is being propounded for any improper purpose, such as to harass the party, or the attorney for the party, to whom it is directed, or to cause unnecessary delay or needless increase in the cost of litigation." (CCP § 2030.050.) Defendants also argue that the amount of discovery requests are excessive and that Defendants should not have to prepare Plaintiff's case for him. However, Defendants cite a case that is clearly distinguishable from the facts here. "[W]here the answer to an interrogatory may be derived or ascertained from the business records of the party to whom such interrogatory is addressed, it is a sufficient answer to such interrogatory to specify the records from which the answer may be derived or ascertained and to afford to the propounder a reasonable opportunity to examine such records and to make copies thereof or compilations, abstracts or summaries therefrom." (*Bunnell v. Superior Ct. of Alameda Cnty.* (1967) 254 Cal. App. 2d 720, 724.) Further, "when the material to be 'discovered' consists . . . solely of information available to both parties, it defeats the purpose of the Discovery Act to compel one party to perform another party's research, whether such be laborious or not." (*Id.*) In *Bunnell*, a party was asked to identify witnesses with relevant knowledge and the party's response was essentially "persons mentioned at prior trials and depositions." (*Id.* at 722.) The appellate court found that

response sufficient because there was “nothing to discover insofar as the identity of the witnesses is concerned in view of plaintiff's answer that there are no witnesses other than those mentioned in the depositions and at the previous trials, transcripts of which are in defendant's possession.” (*Id*. at 723.) “[T]he question is *who* will have the onus of researching these transcripts for the purpose of listing the names of the witnesses in order to lay a foundation for the exclusion of witnesses whose identity has not been disclosed.” (*Id*.) The court concluded that the onus was on the propounding party because “the purpose of the Discovery Act is to permit a party to prepare himself for trial, not to require one party, at his expense, to prepare the case for his opponent.” (*Id*.)

The holding in *Bunnell* does not support Defendants’ refusal to respond at all to Plaintiff’s SRogs as this is not a situation where the information requested is equally available to both parties, or a situation where Defendants are seeking to respond by reference to documents containing the requested information.

However, the court agrees with Defendants that some of the SRogs are overbroad, seek irrelevant information, and/or are ambiguous, and therefore need not be answered.

Plaintiff’s SRog Nos. 2, 6, 11, 15, 19, 23, 27, 31, 35, 39, 43, 50, 54, 58, and 62, request that Defendants “IDENTIFY each FACT RELATING TO” various subject matters. This language is overbroad and ambiguous, and seeks information far beyond the scope of this action. Plaintiff fails to address the impropriety of this type of interrogatory in opposition. The court finds that these requests need not be answered by Defendants.

Plaintiff’s SRog Nos. 18, 21, 22, 24, 25, 47, 51, 52, 57, 60, 61, 64, 66 and 67 are also overbroad and Plaintiff fails to adequately explain in his opposition how these requests are within the scope of discoverable information:

- SRog No. 18: “IDENTIFY each PERSON who purchased and/or received admission to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” **(This action concerns putative class members who were denied admission to the Ladies Night events, not those who purchased tickets and/or**

		received admission, and Plaintiff fails to explain the relevancy of this category of SRogs.) • SRog No. 21: “IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each PERSON who purchased and/or received admission to the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • SRog No. 22: “IDENTIFY each PERSON who purchased and/or received admission to the co-ed events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • SRog No. 24: “IDENTIFY each PERSON having knowledge of any FACTS RELATING TO each PERSON who purchased and/or received admission to the co-ed events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” **(Defendants’ co-ed events are not the subject of this action, and Plaintiff concedes as much by failing to address the relevancy of this category of SRogs in his opposition.)** • SRog No. 25: “IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each PERSON who purchased and/or received admission to the co-ed events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” • SRog No. 47: “IDENTIFY each term of each agreement and/or contract between YOU and any PERSON RELATING TO the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” **(This request is overly broad and burdensome, and is better answered through the production of the agreements and contracts themselves, which are already the subject of one of Plaintiff’s RFPs.)** • SRog No. 51: “IDENTIFY each PERSON having knowledge of each FACT RELATING TO each invoice and/or payment between YOU and any PERSON RELATING TO the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date.” **(Plaintiff fails to explain the relevance of every invoice and/or payment concerning the Ladies Night events to the claims in this action.)**

		• SRog No. 52: "IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each invoice and/or payment between YOU and any PERSON RELATING TO the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • SRog No. 57: "IDENTIFY each PERSON on YOUR newsletter distribution list, at any time from July 7, 2022, through the present date." **(Plaintiff provides no justification for seeking discovery regarding each Defendants' newsletter distribution list, especially the Defendants who acted as only vendors at the event.)** • SRog No. 60: "IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO YOUR newsletter distribution list, at any time from July 7, 2022, through the present date." • SRog No. 61: "IDENTIFY each PERSON on YOUR customer email list, at any time from July 7, 2022, through the present date." **(Plaintiff provides no justification for seeking discovery regarding each Defendants' customer e-mail distribution list, especially the Defendants who acted as only vendors at the event.)** • SRog No. 64: "IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO YOUR customer email list, at any time from July 7, 2022, through the present date." • SRog No. 66: "IDENTIFY the content of the communication between YOUR personnel and Orange County Polo Club." **(Plaintiff provides no reason he needs every communication between each Defendant and the Orange County Polo Club without any limitation as to subject matter or time.)** • SRog No. 67: "IDENTIFY each DOCUMENT, including ELECTRONICALLY STORED INFORMATINO, RELATING TO communication between YOU and Orange County Polo Club." The court finds that Defendants need not answer this set of SRogs either. **<u>Requests for Production</u>**

		The court also finds that the RFP Nos. 6, 13, 15, 16, and 17 relating to the above SRogs are overbroad and/or outside the scope of discovery in this action and need not be responded to: • RFP No. 6: "Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each PERSON who purchased and/or received admission to the co-ed events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFP No. 13: "Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO each invoice and/or payment between YOU and any PERSON RELATING TO the Ladies Night events that occurred at the Orange County Polo Club at any time from July 7, 2022, through the present date." • RFP No. 15: "Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO YOUR newsletter distribution list, at any time from July 7, 2022, through the present date." • RFP No. 16: "Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO YOUR customer email list, at any time from July 7, 2022, through the present date." • RFP NO. 17: "Each DOCUMENT, including ELECTRONICALLY STORED INFORMATION, RELATING TO communication between YOUR personnel and Orange County Polo Club." As the discovery has now been narrowed, the court finds that the burden of responding to the remaining discovery is commensurate with the discovery sought in light of "the needs of the case, the amount in controversy, and the importance of the issues at stake in the litigation." (*People ex rel. Harris v. Sarpas* (2014) 225 Cal. App. 4th 1539, 1552 [citing to CCP § 2019.030(a)(2)].) However, the court finds that additional time is necessary for Defendants to respond to the remaining discovery, and extends the time for Defendants to respond to sixty (60) days from the date of this hearing. Defendants are ordered to give notice of this ruling.

5	30-2025-01518313 Vargas vs. Avalonbay Communities, Inc.	Defendant Avalonbay Communities, Inc.'s ("Defendant") Motion to Stay PAGA Claim is **DENIED**. Defendant asks that the court stay the Sixth Cause of Action for penalties under the Private Attorneys General Act ("PAGA") "pending final determination of the earlier-filed consolidated cases, *Arzooian v. AvalonBay Communities, Inc., et al*. in Los Angeles Superior Court, Case No. 24STCV04194" ("*Arzooian Consolidated Action*"). (Prop. Order ¶ 1.) Defendant seeks relief under the doctrine of exclusive concurrent jurisdiction and alternatively asks that the court exercise its inherent power to stay the action. The court finds that neither ground supports a stay of this action pending the final determination of the *Arzooian Consolidated Action*. The *Arzooian Consolidated Action* consists of a class action and a separate PAGA action brought by the same plaintiff. The PAGA Action is Case No. 24STCV10725 (the "*Arzooian PAGA Action*"), which consists of a single PAGA claim wherein Arzooian alleges claims on behalf of "all other current and former non-exempt employees of Defendants working within the Civil Penalty Period . . . and as it pertains to the alleged claims for failure to comply with Labor Code sections 96, 98.6, 200, 201, 202, 2023, 204, 210, 226, 226.3, 227.3, 232, 232.5, 245, 246, 432, 432.2, 432.5, 432.7, 432.8, 1102.5, 1197.5, and, on behalf of all employees of Defendants working within the Civil Penalty Period." (Kleinkauf Dec., Ex. F.) On October 10, 2025, Plaintiff Angelica Maria Rios Vargas ("Plaintiff") filed a complaint against Defendants Avalonbay Communities, Inc. and Alfonso Martinez (collectively, "Defendants"), and Does 1-5, asserting the following claims: 1. Hostile Work Environment in Violation of FEHA 2. Sexual Harassment in Violation of FEHA 3. Failure to Prevent Harassment in Violation of FEHA 4. Labor Code § 1198.5(k) Penalty 5. Labor Code § 226(f) Penalty (ROA 2.) On December 16, 2025 (ROA 14), Plaintiff filed a First Amended Complaint to add a PAGA claim as the Sixth Cause of Action. On April 24, 2026 (ROA 62), Plaintiff filed the operative Second Amended Complaint ("SAC"), which still includes the PAGA claim. As part of the PAGA claim, Plaintiff alleges Defendants violated Labor Code sections 226 (failure to maintain and provide records), 432 (failure to provide signed instruments relating to employment), 1198.5

		(failure to provide personnel records), and 2802 (failure to reimburse business expenses). While this action and the *Arzooian PAGA Action* overlap in that they seek PAGA penalties for violations of Labor Code sections 226 and 432, these actions are also significantly different. The *Arzooian PAGA Action* consists of several other Labor Code violations that are not at issue in this action, and the *Action Arzooian Consolidated Action* includes class claims. This action involves claims for penalties for violations of Labor Code sections 1198.5 and 2802, which are not at issue in the *Arzooian PAGA Action*. "[T]he power of a court to stay proceedings . . . was inherent at common law and is now vested in the superior courts of this state." (*Bailey v. Fosca Oil Co.* (1963) 216 Cal. App. 2d 813, 817.) "The case management tools available to trial courts, including the inherent authority to stay an action when appropriate . . . can overcome problems of simultaneous litigation if they do occur." (*Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison* (1998) 18 Cal. 4th 739, 758.) "[W]hen two or more courts have subject matter jurisdiction over a dispute, the court that first asserts jurisdiction assumes it to the exclusion of the others." (*Shaw v. Superior Ct. of Contra Costa Cnty.* (2022) 78 Cal. App. 5th 245, 255.) "The rule is based upon the public policies of avoiding conflicts that might arise between courts if they were free to make contradictory decisions or awards relating to the same controversy and preventing vexatious litigation and multiplicity of suits." (*Id.*) "[T]he rule of exclusive concurrent jurisdiction does not require absolute identity of parties, causes of action or remedies sought in the initial and subsequent actions." (*Id.* at 256.) "If the court exercising original jurisdiction has the power to bring before it all the necessary parties, the fact that the parties in the second action are not identical does not preclude application of the rule." (*Id.*) "Moreover, the remedies sought in the separate actions need not be precisely the same **so long as the court exercising original jurisdiction has the power to litigate all the issues and grant all the relief to which any of the parties might be entitled under the pleadings**.'" (*Id.* [emphasis added].) "Where the exclusive concurrent jurisdiction rule applies, the second action should be stayed." (*Id.* at 257.) Courts have applied the exclusive concurrent jurisdiction rule to PAGA representative suits. (*Id.*) "Recognizing a court's power to stay

		a subsequent PAGA representative suit that is **wholly subsumed** by a prior PAGA representative suit—i.e., where the second suit alleges the same Labor Code violations based on the same facts and theories as the prior suit—does not eliminate the code enforcement mechanism provided by PAGA: the first suit proceeds, thus fulfilling PAGA's purpose." (*Id*. at 260 [emphasis added].) Pursuant to the doctrine of exclusive concurrent jurisdiction, this action should only be stayed if it involves the same Labor Code violations and based on the same facts and theories as the *Arzooian Consolidated Action*. However, as there are claims in this action not at issue in the earlier filed action, this action is not "wholly subsumed" by the earlier action. (*Shaw*, 78 Cal. App. 5th at 257.) The court for the *Arzooian PAGA Action* does not have "the power to litigate all the issues and grant all the relief to which any of the parties might be entitled under the pleadings [in this action]." (*Id*. at 256.) Thus, the doctrine of exclusive concurrent jurisdiction does not apply. The court also declines to exercise its discretion to stay the case as it would not promote the interests of justice or conserve judicial resources. This action involves multiple claims not at issue in the *Arzooian Consolidated Action*, and Defendant has not adequately demonstrated that a stay of this action is warranted in light of these distinct claims. Thus, Defendant has not demonstrated adequate grounds to justify a stay and this Motion is denied. Defendant is ordered to give notice of this ruling.
6	30-2013-00637388 Estrada vs. Automobile Club of Southern California	Defendant Automobile Club of Southern California's ("Defendant") Renewed Motion for Judgment on the Pleadings is **GRANTED WITHOUT LEAVE TO AMEND**. On March 13, 2013, Plaintiff Victor Estrada ("Plaintiff") filed this action against Defendant and Does 1-50, which included a Tenth Cause of Action for Violation of the Private Attorney General Act ("PAGA"). (ROA 2.) On July 29, 2019, Plaintiff filed the operative First Amended Complaint ("FAC"). (ROA 399.) The Tenth Cause of Action is the only remaining claim in this action as the other claims have been dismissed. (ROA 843.)

		In the FAC, Plaintiff seeks civil penalties under PAGA after sending notice to the California Labor Workforce and Development Agency (“LWDA”) on December 3, 2012, and an amended notice sent on November 25, 2014. (FAC ¶ 81.) Plaintiff seeks penalties pursuant to Labor Code section 2699.3(d) for the one-year period beginning with the demand letter sent on August 30, 2012 for violations of Labor Code sections 202, 203, 204, 223, 226, 226.7, 510, 512, 1194, 1197, 1198, 1199, and 2802, as well as attorneys’ fees and costs pursuant to Labor Code section 2699(g)(1). (*Id*. ¶ 80.) Defendant seeks an order for judgment on the pleadings without leave to amend on the grounds that the remaining PAGA claim in this action has been extinguished by the settlement and final judgment in Los Angeles County Superior Court case *Blanca Gutierrez, et al. v. ACSC Management Services, Inc., Auto Club Enterprises, and Automobile Club of Southern California*, Case No. 19STCV44116 (“*Gutierrez*”), pursuant to the doctrines of res judicata and claim preclusion. “The tenets of res judicata prescribe the preclusive effect of a prior final judgment on the merits.” (*City of Oakland v. Oakland Police & Fire Ret. Sys*. (2014) 224 Cal. App. 4th 210, 227.) “Claim preclusion, often referred to as res judicata, provides that ‘a valid, final judgment on the merits precludes parties or their privies from relitigating the same ‘cause of action’ in a subsequent suit.’” (*Id.*) “Application of the doctrine of res judicata ‘is intended to preserve the integrity of the judicial system, promote judicial economy, and protect litigants from harassment by vexatious litigation.’” (*Id*. at 228.) It “rests upon the sound policy of limiting litigation by preventing a party who has had one fair adversary hearing on an issue from again drawing it into controversy and subjecting the other party to further expense in its reexamination.” (*Id.*) “Claim preclusion bars a new lawsuit if the first case had (1) the same cause of action; (2) between the same parties, or parties in privity; and (3) a final judgment on the merits.” (*Brown v. Dave & Buster's of California, Inc.* (2025) 116 Cal. App. 5th 164, 169.) The “doctrine promotes judicial economy by requiring all claims based on the same cause of action that *were or could have been raised* to be decided in a single suit.” (*Id*. at 170 [emphasis in original].) If a claim “is actually raised by proper pleadings and treated as an issue in the cause, it is conclusively determined by the first judgment.” (*Thibodeau v. Crum* (1992) 4 Cal. App. 4th 749, 755.) “But the rule goes

		further." (*Id.*) "If the matter was within the scope of the action, related to the subject-matter and relevant to the issues, so that it could have been raised, the judgment is conclusive on it despite the fact that it was not in fact expressly pleaded or otherwise urged." (*Id.*) "A party cannot by negligence or design withhold issues and litigate them in consecutive actions." (*Id.*) "Hence the rule is that the prior judgment is res judicata on matters which were raised or could have been raised, on matters litigated or litigable." (*Id.*) "[A] judgment in an employee's action under [PAGA] binds not only that employee but also the state labor law enforcement agencies," and "[b]ecause an aggrieved employee's action under [PAGA] functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." (*Arias v. Superior Ct.* (2009) 46 Cal. 4th 969, 986.) When an employer has settled with another PAGA plaintiff, a trial court may grant the employer's motion for judgment on the pleadings of a plaintiff's PAGA claim on the grounds of claim preclusion. (*Brown*, 116 Cal. App. 5th at 166.) Claim preclusion applies to a PAGA claim when the settlement in another PAGA action "fully encompassed and released [the PAGA claim] . . . thus satisfying all elements of claim preclusion." (*Id.* at 172.) In *Gutierrez*, Plaintiff Estrada unsuccessfully sought to intervene and vacate the *Gutierrez* Judgment and appealed such denial. On December 18, 2025, the Second Appellate District dismissed Plaintiff's appeal and on March 18, 2026, the Supreme Court of California denied Plaintiff's Petition for Review. Defendant previously sought an order for judgment on the pleadings, which the court denied on May 27, 2022, because the judgment in *Gutierrez* had not yet been finalized. Plaintiff had filed a notice of appeal and sought to vacate the judgment. The court then stayed the case pending the outcome of the *Gutierrez* appeals. (ROA 913.) As the appeals have now been resolved, the judgment is now final as to the PAGA claim in *Gutierrez*. As a threshold matter, the court did not take into consideration Plaintiff's arguments regarding the propriety of the proceedings, settlement and judgment in the *Gutierrez* action

		and appeals as they are outside the scope of this Motion and the court has no jurisdiction over those proceedings. The court also did not take into consideration Defendant's reliance on any facts that are outside the scope of the FAC or any facts that are not subject to judicial notice. It is undisputed that the type of Labor Code violations asserted in this action are subsumed by the type of Labor Code violations asserted in the *Gutierrez* settlement and judgment. However, Plaintiff argues in opposition that there is a patchwork of claims in this action that are not extinguished by the *Gutierrez* settlement and judgment. The January 11, 2022 final judgment in *Gutierrez* defined the aggrieved employees whose claims were released by the settlement as follows: The Aggrieved Employees, defined as all non-exempt and/or hourly employees in California who worked for Defendants for any portion of (i) the time period between February 18, 2018 and the date that the Court enters an Order approving the PAGA Settlement, and/or (ii) all non-exempt and/or hourly employees of Defendants in California who worked an on-call shift within one or more pay periods during the time period between January 1, 2012 and the date that the Court enters an Order approving the PAGA Settlement [which was January 11, 2022]. (Def's RJN, Ex. G.) Plaintiff contends his claim encompasses a larger employee group and a longer time period than the *Gutierrez* case. Plaintiff contends that he can still represent: (1) all California employees (both those classified as exempt and those classified as non-exempt) who worked from December 3, 2011 to January 1, 2012; (2) all California employees who did not work an "on-call shift" from January 1, 2012 to February 18, 2018; and (3) all California employees who worked for Defendant from January 11, 2022 to the present. First, Plaintiff contends that his PAGA claim includes claims for penalties for both exempt and non-exempt employees. However, neither Plaintiff's PAGA Notices nor the FAC make any mention of exempt employees, and Plaintiff is not an exempt employee. (Halberda Dec., Ex. A at p. 2 ["Estrada was classified as a nonexempt employee, he was required by [the Auto Club], once a week, every five weeks, to be 'on-call' 24

		hours a day."]; *see* FAC *generally*.) Thus, the court finds that this argument is without merit and not based on the pleadings in this action. Second, Plaintiff argues that he can seek PAGA penalties beginning from December 3, 2011, but that argument is based on a misunderstanding of the law. Defendant's counsel claims that Judge Sherman ordered that the operative PAGA period began on January 7, 2012 in this Action, which was 1 year and 65 days of tolling from the filing date of Plaintiff's Complaint on March 13, 2013, at a status conference on June 27, 2019. (Supp. Halberda Dec. ¶ 4, Ex. L.) However, this is outside of the pleadings and is not judicially noticeable as there is no record of any ruling by Judge Sherman. Nevertheless, the alleged finding is correct and based on the date Plaintiff filed this action, Plaintiff cannot seek PAGA penalties for any Labor Code violations earlier than January 7, 2012. "[A] PAGA action is subject to a one-year statute of limitations." (*Hutcheson v. Superior Ct.* (2022) 74 Cal. App. 5th 932, 939 [citing CCP § 340(a)].) "The 65-day period following notice to the LWDA and employer is 'not counted as part of the time limited for the commencement of the civil action to recover penalties' under PAGA." (*Id.*) CCP § 340(a) states that **"[a]n action** upon a statute for a penalty or forfeiture, if the action is given to an individual, or to an individual and the state, except if the statute imposing it prescribes a different limitation" must be brought "[w]ithin one year." (CCP § 340(a) [emphasis added].) "The periods specified in [the PAGA statute] are not counted as part of the time limited for the commencement of the civil action to recover penalties under this part," including the 65-day review period after a PAGA Notice is served on the LWDA. (Cal. Lab. Code § 2699.3(e).) Based on the foregoing, and harmonizing the statutes and the case law, the operative PAGA Period that Plaintiff can claim PAGA penalties is only one year before he filed this action plus 65 days tolling under PAGA. As there is a one-year statute of limitations for a claim for statutory penalties, only Labor Code violations occurring within one year of filing suit can be the basis for PAGA penalties. Since PAGA itself allows a 65-day tolling period, the correct PAGA period in this action starts on January 7, 2012, 1 year and 65 days before the case was filed on March 13, 2013.

		Plaintiff improperly relies on the date of his PAGA notice as the measure for the one-year statute of limitations to claim PAGA penalties, but the statute of limitations for PAGA claims turns on when an action is filed, not when the LWDA notice is made. Plaintiff argues that the PAGA Period in this action should start on December 3, 2011 because he served the LWDA with notice of the Labor Code violations on December 3, 2012. However, Plaintiff's only authority for this proposition is distinguishable from the facts in this case. In *Hutcheson v. Superior Ct.* (2022) 74 Cal. App. 5th 932, 936–37, the PAGA Period for which a plaintiff could claim PAGA penalties extended back to December 22, 2016 because an earlier plaintiff had provided PAGA notice to the LWDA on December 22, 2017 and when that plaintiff "did not receive any response from the LWDA within the statutorily required 65 days, . . . on the 66th day, February 26, 2018, as permitted by statute (§ 2699.3, subd. (a)(2)), he filed suit . . . alleging a single cause of action for penalties under PAGA." Thus, the court permitted a PAGA Period start date of December 22, 2016 because it was one year and sixty-five days before the date that earlier plaintiff filed his lawsuit, which was February 26, 2018. Here, Plaintiff did not file suit as soon as possible (the 66th day after the December 3, 2012 PAGA notice was submitted, i.e. February 7, 2013), and instead waited until March 13, 2013. Due to Plaintiff's delay in bringing suit, Plaintiff's PAGA claim does not extend to penalties for Labor Code violations between December 3, 2011 and January 1, 2012. Plaintiff may be conflating the statute of limitations as it applies to the timing of serving the LWDA with a PAGA notice. Courts have stated that "the statute of limitations is [also] tied to the PAGA plaintiff's individual claims, and that the PAGA plaintiff must bring a PAGA action (as noted above, by serving notice on the Agency) within one year of the last Labor Code violation he or she individually suffered." (*Williams v. Alacrity Sols. Grp., LLC* (2025) 110 Cal. App. 5th 932, 942.) Here, there is no debate that Plaintiff filed the PAGA notice within one year of his last Labor Code violation. However, when Plaintiff must serve a PAGA notice is a different question than the question of how far back Plaintiff can seek PAGA penalties in a PAGA claim. Third, Plaintiff seeks to claim PAGA penalties for violations that occurred after the end of the time period encompassed by the *Gutierrez* settlement, i.e. January 11, 2022 to the present.

		However, Plaintiff lacks standing to seek PAGA penalties for violations that occurred after his employment ended. "[T]he preclusion of [a plaintiff's] claims for the period during which he was employed . . . deprives him of standing to assert claims arising exclusively after he was so employed." (*Robinson v. S. Ctys. Oil Co.* (2020) 53 Cal. App. 5th 476, 484; *see also, e.g., Brown v. Dave & Buster's of California, Inc.* (2025) 116 Cal. App. 5th 164, 169.) It is undisputed that Plaintiff's employment was terminated on April 10, 2012. (SAC ¶ 7.) In sum, Plaintiff cannot seek penalties for the first group of "all California employees (both those classified as exempt and those classified as non-exempt) who worked from December 3, 2011 to January 1, 2012," based on the applicable statute of limitations and the language in Plaintiff's PAGA Notice and FAC. Plaintiff cannot seek PAGA penalties for the second group of "all California employees who did not work an 'on-call shift' from January 1, 2012 to February 18, 2018," as the FAC does not include such employees. And finally, Plaintiff cannot seek PAGA penalties for the third group of "all California employees who worked for Defendant from January 11, 2022 to the present," as Plaintiff lacks standing to bring a PAGA claim for Labor Code violations after he was terminated. Thus, there is no patchwork of remaining claims, and the only viable PAGA claim that remains is entirely subsumed by the *Gutierrez* settlement and judgment. The court finds that based on res judicata and claim preclusion, the *Gutierrez* settlement and judgment has extinguished Plaintiff's remaining PAGA claim, and therefore GRANTS Defendant's Motion for Judgment on the Pleadings. The court **GRANTS** Defendant's requests for judicial notice of Exhibits A-D, H-N, and Q-U (filings in this action and the proceedings in the *Gutierrez* action), and Exhibits E-G, O-P and V-Y (orders and judgments in this action and the proceedings in the *Gutierrez* action). The court also **GRANTS** Plaintiff's requests for judicial notice of the October 2, 2019 PAGA notice in *Gutierrez*, an exhibit attached to the complaint in *Gutierrez*, the complaint in *Gutierrez*, a declaration filed in support of a motion to stay in *Gutierrez*. (Cal. Evid. Code § 452(d).) Courts "may properly take judicial notice of a party's earlier pleadings and positions as well as established facts from both the same case and other cases." (*Cantu v. Resolution Tr. Corp.* (1992) 4 Cal. App. 4th 857, 877.)

		The court does not take judicial notice of the truth of factual matters asserted in court filings, but will recognize the existence of those filings and the statements made therein. "A court may take judicial notice of the [e]xistence of each document in a court file, but can only take judicial notice of the truth of facts asserted in documents such as orders, findings of fact and conclusions of law, and judgments." (*People v. Franklin* (2016) 63 Cal. 4th 261, 280.) The court declines to rule on Defendant's objections to the Declaration of Joseph R. Becerra, Plaintiff's counsel, as the purportedly objectionable statements are irrelevant to the court's ruling and concern speculation regarding the proceedings in the *Gutierrez* action which the court declines to revisit after final judgment was reached in that action. Defendant is ordered to give notice of this ruling.